

2. **S-CV-0045659 Larsen, Sherry v. Placer Valley Sports Complex**

This tentative ruling is issued by the **Honorable Suzanne I. Gazzaniga**. If oral argument is requested, it will be heard on **August 4, 2026 at 1:30 p.m. in Department 43**.

Motion for Attorneys' Fees

Defendant and cross-complainant Placer Valley Sports Complex, Inc., dba @the Grounds ("defendant") moves for an award of attorneys' fees against plaintiff and cross-defendant Sherry Larsen individually and dba California State Enterprises ("plaintiff") in the amount of \$396,445 and costs of \$60 for the filing fee for this motion. Plaintiff opposes the motion.

Preliminarily, plaintiff's opposition was untimely filed without leave of court. The court exercises its discretion to consider all briefing filed in this matter.

The threshold question is whether defendant is entitled to recover fees. The action is based on a 2019 Facility License Agreement, which includes an attorneys' fees provision: "Item 14 – Miscellaneous: The prevailing party in any action to enforce or interpret this agreement shall be entitled to recover its reasonable attorneys' fees." (Cross-complaint, Exh. 1, Item 14.) A prevailing party in an action on contract is entitled to recover reasonable attorneys' fees where the contract provides for their recovery. (Civ. Code, § 1717, subd. (a).) Here, after a multi-day court trial, the court found in favor of defendant as against plaintiff on both the complaint and the cross-complaint. (Judgment, filed Feb. 2, 2026.) The judgment also specified, "Placer Valley Sports Complex, Inc. is the prevailing party in the action" and that "Placer Valley Sports Complex, Inc. is entitled to recover from Sherry Larsen the attorney fees it incurred in the action in an amount determined by the court on post-judgment motion and order." (*Ibid.*) As this court has already found, defendant is the prevailing party and is therefore entitled to recover reasonable attorneys' fees.

The court must next address whether \$396,445 in attorneys' fees is reasonable. Determining the reasonable amount of attorneys' fees begins with the lodestar method, that is, the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Serrano v. Priest* (*Serrano III*) (1977) 20 Cal.3d 25, 48–49.) The lodestar figure may then be adjusted, based upon factors specific to the case, to fix the fees at a fair market value for the legal services provided. (*PLCM Group v. Drexler, supra*, 22 Cal.4th at p. 1095.)

The court has carefully reviewed the declaration of counsel Robert F. Sinclair. Counsel Sinclair declares his hourly rate of \$400, counsel Scott Christensen's hourly rate of \$300, and paralegal Vicki L. Canales' hourly rate of \$150, which the court finds to be reasonable. Moreover, the court observes that plaintiff, in her untimely opposition, concedes the hourly rates are reasonable. Turning next to the question of whether the number of hours incurred are reasonable, the court has carefully reviewed the declaration of counsel Sinclair and Exhibit A thereto, which supports 1,002.1 hours of attorney time

and 1.9 hours of paralegal time incurred in this litigation. The court observes defense counsel's invoices reveal instances where the work does not appear necessary for the litigation or is insufficiently explained and instances where the work appears to be duplicative or unreasonably excessive. In light of these observations, a decrease to the total number of hours is appropriate and the court reduces counsel Sinclair's hours by 47.70 hours and counsel Christensen's hours by 3.60 hours.

Plaintiff's untimely opposition objects to witness fees for David Jones and fees for Craig Connerty. However, defendant is not seeking these costs by way of this motion; rather, defendant claimed these costs by way of a costs memorandum filed on February 13, 2026 and served by mail on February 12, 2026. Costs in a costs memorandum may be challenged by a motion to strike or to tax costs filed within "15 days after service of the cost memorandum." (Cal. Rules of Court, rule 3.1700(b)(1).) "After the time has passed for a motion to strike or tax costs or for determination of that motion, the clerk must immediately enter the costs on the judgment." (Cal. Rules of Court, rule 3.1700(b)(4).) Here, no motion to strike or to tax costs has been filed and the time to do so has long passed. The costs of \$43,049.74 declared in defendant's costs memorandum, including those two categories that plaintiff objects to, have long become final and cannot be challenged by way of opposition to the instant attorneys' fees motion.

As to additional costs, defendant seeks \$60 for the filing fee for this motion. This is an allowable cost pursuant to Code of Civil Procedure section 1033.5(a)(1) and the court finds the amount is reasonable. The court awards additional costs of \$60.

Based on the foregoing, the motion for attorneys' fees is granted in part. Defendant is awarded attorneys' fees against plaintiff in the amount of \$376,285 and additional costs of \$60 for a total of \$376,345.

3. S-CV-0046752 Vicara Homeowners Assoc. v. Dedricksen, Susan

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima. Department 32 is located at 10820 Justice Center Drive, Roseville, California 95678.

Moving counsel is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion To Be Relieved as Counsel

The motion to be relieved as counsel for plaintiff Vicara Homeowners Association by Brady & Vinding is granted, effective upon the filing of proof of service of the signed order after hearing on the client, Vicara Homeowners Association. (Code Civ. Proc., § 284, subd. (2); Cal. Rules of Court, rule 3.1362.)